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PART C – CONTRACT CLAUSES

C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE FEBRUARY 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): Federal Acquisition Regulations (FAR) clauses: <https://www.acquisition.gov/browse/index/far> ; RFO FAR part on [acquisition.gov/far-overhaul](https://www.acquisition.gov/far-overhaul); and Department of the Interior Acquisition Regulations (DIAR) clauses: <https://www.acquisition.gov/diar>

In addition, clauses can be identified as follows:

FAR - by the number prefix 52, e.g. 52.252-01, etc.; and

DIAR - by the number prefix 1452 and number suffix of -70, e.g. 1452.204-70.

The following reference clauses are hereby incorporated into and made a part of this contract.

Clause	Title	Date
52.212-4	Terms and Conditions – Commercial Products and Commercial Services	Nov 2025
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-13	System for Award Management – Maintenance (Deviation)	March 2026
52.209-10	Prohibition on Contracting with Inverted Domestic Corporation (Deviation)	May 2026
52.219-06	Notice of Total Small Business Set-Aside (Deviation)	Jan 2026
52.219-33	Nonmanufacturer Rule (Deviation)	Jan 2026
52.222-03	Conviction Labor (Deviation)	May 2026
52.222-19	Child Labor-Cooperation with Authorities and Remedies (Deviation)	May 2026
52.222.50	Combating Trafficking in Persons (Deviation)	May 2026
52.222-90	Addressing DEI Discrimination by Federal Contractors	April 2026
52.225-01	Buy American – Supplies	Nov 2025
52.226-08	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.232-33	Payment by Electronic Funds Transfer – System for Award Management	Oct 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar 2023
52.233-03	Protest after Award	Nov 2025
52.233-04	Applicable Law for Breach of Contract Claim	Nov 2025

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C.2 ADDENDUM TO 52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

a. 52.244-06 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and nondevelopmental item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.
Subcontract has the meaning at FAR 44.401

(b) *Requirements.*

(1) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(2) If a clause in the following table is included in the contract, the Contractor shall insert the clause in subcontracts for commercial products or commercial services and must flow down the requirements of the clause to subcontracts as indicated in the specific clause:

Number	Title	Date
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.219-8 *	Utilization of Small Business Concerns	JAN 2025
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020

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52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-50 with Alt I	Combating Trafficking in Persons, with its Alternate I	MAR 2015
52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements	MAY 2014
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements	MAY 2014
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.222-90	Addressing DEI Discrimination by Federal Contractors	APR 2026
52.224-3	Privacy Training	JAN 2017
52.224-3 with Alt I	Privacy Training, with Alternate I	JAN 2017
52.225-26	Contractors Performing Private Security Functions Outside the United States	OCT 2016
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023

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52.240-91	Security Prohibitions and Exclusions	AUG 2025
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52.240-91 with Alt I	Security Prohibitions and Exclusions, with its Alternate I	AUG 2025
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52.240-92	Security Requirements	AUG 2025
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52.240-92 with Alt II	Security Requirements, with its Alternate II	AUG 2025
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52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels	NOV 2021
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* Include only if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(c) *Subcontracts*. The Contractor shall include the terms of this clause, including this paragraph (c), in subcontracts awarded under this contract.

b. DOI- AAAP-0028	ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INVOICE PROCESSING PLATFORM (IPP)	FEB 2021
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Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

Payment request' means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice: **None**

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can

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be obtained by contacting the IPP Production Helpdesk via email
IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

c. FAR 52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 60 days.
(End of clause)

d. 52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 days provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of clause)

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Part D – Contract Documents, Exhibits, or Attachments	RFQ No. 140R3026Q0006	Project Title Wash Rack Maintenance 2026	Page D-1
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PART D – CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1 LIST OF ATTACHMENTS

INDEX OF ATTACHMENTS		
Item No.	Title	No. of Pages
Attachment 1	Statement of Work	2

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SOLICITATION PROVISIONS

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY FEB 1998 REFERENCE

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at these addresses: Federal Acquisition Regulations (FAR) clauses: <https://www.acquisition.gov/browse/index/far> and Department of the Interior Acquisition Regulations (DIAR) clauses: <https://www.acquisition.gov/diar>

In addition, the clauses can be identified as follows:

FAR - by the number prefix 52, e.g. 5.2252-01, etc., and

DIAR - by the number prefix 1452 and number suffix of -70, e.g. 1452.204-70.

The following provisions are hereby incorporated into and made a part of this solicitation. Failure to comply with these provisions may result in the offer being determined non-responsive.

Provision	Title	Date
52.212-01	Instructions to Offerors – Commercial Products and Commercial Services (Deviation)	March 2026
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	Jan 2017
52.204-07	System for Award Management – Registration. (Deviation)	March 2026

Addendum to 52.212-1 substitutes the term “quote” where the term “offer” appears in the provision and substitutes the term “RFQ” where the term “solicitation” appears the provision.

E.2 ADDENDUM TO 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

a. QUOTE INSTRUCTIONS

Offerors shall submit a complete quote package that includes the following information:

1. Quote Format Requirements
 - Fill out SF-1449
 - Fill out Price Schedule
 - Warranty details for all components and workmanship.
2. Technical Submission Requirements

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- Description of the offeror’s ability to perform the maintenance as required.
- Evidence of experience with similar wash racks.
- Any available certifications, authorizations, or relevant qualifications.
- 3. Past Performance Information
 - At least two examples of past projects of similar scope.
 - Points of contact for verification, including name, organization, and phone/email.
- 4. Submission Instructions
 - Quotes must be submitted electronically to noah_maye@ios.doi.gov.
 - All quotes must reference the RFQ No. and include the offeror’s UEI and business information.
 - Offerors are responsible for confirming receipt of their submission.

E.3 52.212-2 EVALUATION – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION) MAR 2026

(a) Evaluation factors. The Government will award a contract resulting from this RFQ to the responsible Offeror whose offer conforming to the RFQ will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

The Government will award a fixed-price purchase order, resulting from this RFQ, to the responsible vendor whose quote provides the best benefit to the Government, price and other factors considered. A comparative evaluation will be performed. Quotes will be evaluated by performing a direct comparison of one quote to another in a uniform manner to determine which quote provides the government’s need as identified in the RFQ. Each quote shall be evaluated based on Technical Capability, Schedule, Past Performance and Price.

At a minimum, quotes must meet the RFQ Specifications. Quotes may exceed the government’s need and the government reserves the right to consider such quotes. However, the government is not required to select a quote that exceeds the minimum need but does have the discretion to accept other than the lowest price quote, provided the quote offers additional benefit to the government.

Technical capability, schedule, past performance, and price.

1. Technical Capability

- Demonstrated ability to provide and install all required equipment as specified in Section 4.

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- Compliance with all maintenance requirements in Section 4.
 - Evidence of relevant experience with similar wash racks.
2. Schedule
- Ability to meet or exceed the period of performance requirements.
3. Past Performance
- Vendor's record of quality, timeliness, and customer satisfaction on similar projects.
 - Positive performance history.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

**E.3 1452.215 USE AND DISCLOSURE OF PROPOSAL
-71 INFORMATION – DEPARTMENT OF THE
INTERIOR**

APR 1984

Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below: (1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend: "The information specifically identified on pages of this proposal

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constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information

not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of

Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and

(c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure

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to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

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